
Appeal Decision

Site visit made on 17 August 2026 by S Manson DipTP MRTPI

Decision by John Morrison BA (Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 15 September 2026

Appeal Ref: 6010024

15 Warwick Road, Kirklees, Batley WF17 6BU

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Fathima Arafath against the decision of Kirklees Metropolitan Council.
 - The application Ref is 2026/62/90709/E.
 - The development proposed is described as a retrospective application for the change of use of part of an existing residential kitchen to allow small scale home cooking for take away and delivery.
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Decision

1. The appeal is dismissed.

Appeal Procedure

2. The site visit was undertaken by a representative of the Inspector whose recommendation is set out below and to which the Inspector has had regard before deciding the appeal scheme, which seeks retrospective planning permission.

Preliminary Matters

3. A Revised National Planning Policy Framework (the Framework) was published on 17 August 2026. There have been some layout and subsequent paragraph numbering changes. I am however satisfied that, having reviewed the relevant changes, they do not have a material bearing on the substance of the main issues or indeed the arguments of the main parties thereon. Since they would not therefore be prejudiced, I have proceeded without further consultation.

Main Issues

4. The main issues are a) whether the appeal property is an appropriate location for a Hot Food Takeaway (HFT) having regard to its siting outside a defined centre and its proximity to a primary school; and b) the effect of the development on the living conditions of nearby residents with particular regards to noise, odour, waste storage and litter.

Reasons for the Recommendation

Appropriate Location

5. The appeal property is mid terraced and on a predominantly residential street which comprises similar buildings and a three-storey block of flats. Warwick Road Junior, Infant and Nursey School is a short walking distance away. A high number of vehicles were parked on the street at the time of my morning site visit.

6. The appeal site lies outside a defined centre. Consequently, Policies LP13 and LP16 of the Kirklees Local Plan, Strategy and Policies, 2019 (LP) require the submission of a sequential test and supporting evidence demonstrating the acceptability of the location for a main town centre use. No such information has been provided. Whilst the appellant contends that the scale of the operation is limited, the use applied for and undertaken is that of a HFT, which is classed as a main town centre use. Neither the development plan nor the Town and Country (Use Classes) Order 1987 (as amended), distinguishes such uses by reference to the scale of operation.
7. Policy HC5 of the Framework clearly states, amongst other things, that proposals for a HFT should be refused if it is to be located within a reasonable walking distance of a school, which it quantifies as 400 metres. The Council's Hot Food Takeaway Supplementary Planning Document, 2022 (SPD) aligns with this figure. It is not disputed that the appeal site falls within this distance.
8. Contradictory evidence has been submitted regarding the operating hours of the business. In any event, the potential influence of a HFT in close proximity to a school is not confined to the traditional start and end of the school day. Although younger pupils are likely to be accompanied by adults, the school caters for children up to the age of 11, some of whom may travel independently. Moreover, there is no substantive evidence before me to demonstrate that the school does not operate after-school clubs, childcare provision or other activities that would result in pupils leaving the site beyond conventional school finishing times. Furthermore, the presence of signage on the front elevation advertising the business increases its visibility and prominence within the street scene.
9. Drawing these matters together, the development occupies an unsuitable location that conflicts with the Council's and Government's approach to reducing children's exposure to foods contributing towards obesity such as those sold in HFTs. The development, therefore, conflicts with Policies LP13, LP16 and LP47 of the LP, guidance in the SPD, and Policy HC5 of the Framework. These, amongst other things, seek to ensure that HFT development is located in appropriate locations, having regard to the health and wellbeing of residents.

Noise, Odour, Waste Storage and Litter

10. The dense residential environment within which the appeal site finds itself means neighbouring occupiers are in close proximity to the operation of the appeal scheme. The submitted plans do not indicate the presence of any dedicated extraction equipment, odour control measures, acoustic mitigation, or external waste storage arrangements.
11. Whilst the appellant advises that the operation is small in scale, limited information has been provided regarding the volume of food preparation undertaken, the frequency of collections, deliveries, customer visits, or waste generation. Consequently, it has not been satisfactorily demonstrated that the use does not result in unacceptable levels of cooking odours, noise and disturbance, or waste-related impacts affecting neighbouring occupiers.
12. Furthermore, no details have been provided demonstrating how waste and litter associated with the use could be stored and managed without causing visual intrusion or nuisance. Given the location of the site and its position within a continuous terrace, I am not satisfied that adequate provision exists as it stands.

13. Accordingly, the development fails to provide a satisfactory living environment for neighbouring occupiers and as such conflicts with Policies LP16, LP24 and LP52 of the LP and guidance in the SPD. These seek, amongst other things, to ensure development protects and minimises impact on residential amenity and the quality of life and well-being of people. The Council also cites conflict with Policy LP21 of the LP, which specifically relates to highways and access, and therefore has not been decisive in my findings.
14. With regard to Policy S4 of the Framework and the principle of development within settlements, the harm I have found, and the subsequent development plan conflict, would be obvious and enduring and I therefore ascribe it significant weight. The benefits of granting planning permission which would be limited mainly to small scale contributions to the local economy, would therefore be substantially outweighed by the adverse effects identified above. The lack of objection from neighbouring properties does not in itself render the scheme acceptable, nor absolve me from making an assessment as to its effects in regard to the main issues.

Conclusion and Recommendation

15. For the reasons given above, the appeal scheme conflicts with the development plan and material considerations do not indicate a decision other than in accordance therewith. I therefore recommend that the appeal should be dismissed.

S Manson

APPEAL PLANNING OFFICER

Inspector's Decision

16. I have considered all the submitted evidence and my representative's report and on that basis the appeal is dismissed.

John Morrison

INSPECTOR